

Tentative Rulings for June 23, 2026 Department PS1

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2503458	ONTIBEROS VS GENERAL MOTORS LLC	HEARING RE: MOTION FOR ATTORNEYS FEES BY ROLAND ONTIBEROS

Tentative Ruling: Under Civil Code section 1794, subdivision (d), “[i]f the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.”

The Song-Beverly Act contains a cost-shifting provision that expressly allows prevailing plaintiffs to recover their costs and expenses, including attorney fees. Civil Code §1794(d) provides: “If the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.”

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure (time reasonably spent by each biller multiplied by an hourly rate that is reasonable for each biller.) (*Serrant v. Priest* (1977) 20 Cal.3d 25, 48.) In exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394; see also *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th at 1096 (factors considered in determining the reasonableness of a party’s attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure).) The court does not need expert testimony to determine the reasonable amount of a fee award. (*PLCM Group, supra*, 22 Cal.4th at 1095.)

The matter of reasonableness of a party’s attorney fees is within the sound discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Fee motions should be based on detailed time records. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 271.) The records should detail crucial information as the types of issues involved, services performed, numbers of hours, billing rates, etc. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) The court is then entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel’s declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.)

Plaintiff provides the following breakdown of the requested attorneys' fees:

<u>Biller (2025)</u>	<u>Total Time</u>	<u>Rate in \$</u>	<u>Total Amount in \$</u>
Kimberli Zazzi	47.0	\$500/hr	\$23,500
LaDawna Fleckenstein	3.3	\$500/hr	\$1,650
Paralegal costs		\$150	\$1,635
Wrap Up			\$4,000
		Total Fees	\$30,785
		Lodestar Enhancement	x1.1 (\$2,915)
		Costs	\$788.36
		Total Request	\$33,208.36

The starting point for every fee award is calculating an attorney's services by the time expended on the case. (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 815.)

GM challenges specific billing entries in light of Plaintiff initiating this lawsuit on May 2, 2025 and settling on December 22, 2025 with no motions before the court. The court shall award fees at \$500/hour for attorney Zazzi and Fleckenstein.

Mediation-Related Fees:

Plaintiff seeks 4 hours (\$2000) for mediation related fees on December 10, 2025. GM points out Plaintiff's own record describes the proceeding as a "block mediation held on 12/10/2025" involving five other cases. (Zazzi Decl., Exh. 5, 12/23/2025 ["Mailed out Mediator's check for payment for block mediation held on 12/10/2025"].) The court shall reduce the time to 1.5 hours.

Duplicate Entries and Administrative/Clerical Work:

GM points out attorney Zazzi demands compensation for 47 hours of the 50.3 attorney hours worked without regard to the nature of the work performed. These hours include routine administrative functions and clerical communications, which are unreasonable.

- April 25, 2025 to April 30, 2025: Zazzi billed 7.4 hours for the pre-litigation intake process even though Plaintiff was already a recurring client. Time reduced by 5.4 hours.
- July 11, 2025: Zazzi and a paralegal billed 0.2 hours each for reviewing and processing routine documents, including GM's Answer, a meet-and-confer letter, and a proposed stipulation and protective order. Zazzi's hours reduced by 0.2 hours.
- December 10, 2025 to January 13, 2026: Zazzi billed 5.5 hours handling settlement administration tasks herself while paralegals collectively billed only one hour during the same period. Most of Zazzi's tasks appear to be clerical in nature. Zazzi's hours reduced by 2.2 hours.

Attorney Fee Motion:

GM contends the claimed 10.7 hours devoted to drafting this motion is excessive. This is excessive. The court reduces by 6.7 hours. As for paralegal hours spent, no information was given about the paralegals' experiences and total hours. This is reduced to zero.

Multiplier:

The purpose of a fee enhancement is "primarily to compensate the attorney for prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.) "Fair market value" typically includes a premium for the risk of nonpayment or delay in payment of attorney fees. (*Id.* at 1138.) The instant matter is a non-complex routine lemon law action that settled in seven months. The Court did not hear motions. The parties were not required to undertake any trial preparation. Request for multiplier is DENIED.

Costs:

Defendant does not dispute the costs of \$788.36

Plaintiff seeks additional "wrap up fees" in the amount of \$4,000 but does not explain how this amount was calculated. The court awards for 1.5 hours at \$500/hour.

The court awards as below:

<u>Biller</u>	<u>Total Time</u>	<u>Rate</u>	<u>Total Amount in \$</u>
Kimberli Zazzi (20+ yrs)	32.5	\$500/hr	\$16,250
LaDawna Fleckenstein (17+ yrs)	3.3	\$500/hr	\$1650

Paralegal costs	0	\$150	\$0
Wrap Up	1.5	\$500	\$750
		Total Fees	\$18,650
		Lodestar Enhancement	\$0
		Costs	\$788.36
		Total Request	\$19,438.36

Motion for Attorney's Fees and Costs GRANTED in PART.

Award of \$18,650 in fees + \$788.36 costs for total award of \$19,438.36.

OSC re dismissal pursuant to settlement confirmed for 12.21.26. Case Management Conference is vacated.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2508295	LITTLE VS ROCKET TITLE INSURANCE	MOTION TO COMPEL: ANSWER/RESPONSE TO PRODUCTION OF DOCUMENTS MARCH 20.2026, SET ONE; AND FOR MONETARY SANCTIONS BY AUDREY LITTLE

Tentative Ruling: No tentative ruling, on court's own motion, the hearing is VACATED.

Plaintiff's motion seeks to compel Defendant Oaktree's written responses and document production. CCP § 2031.300 authorizes a motion to compel responses to requests for production of documents where none have been provided. No meet and confer is required. In general, where a party, who has been served with requests for production of documents fails to serve timely responses he/she "waives any objection to the interrogatory or request for admission including one based on privilege or on the protection for work product."

Here, Plaintiff declares that she served the RPDs on Oaktree on 3/20/26. (Dec. Little ¶ 3, Ex. "A".) She acknowledges that Oaktree's responses were due on 4/22/26 (adding two days for electronic service). (*Id.* ¶ 4.) Oaktree's counsel confirmed on 4/20/26 that responses were served that day. (*Id.* ¶ 5.) Plaintiff declares Oaktree "*did not serve a verified written response to the Demand on or before April 22, 2026.*" (*Id.* ¶¶ 6, 9.) She also declares that Oaktree did not serve responsive documents. (*Id.* ¶¶ 6, 10.) Also on 4/20/26, Oaktree's counsel transmitted to Plaintiff a 618-page PDF. (*Id.* ¶ 7, Ex. "C".) Plaintiff declares she sent a meet and confer letter by email, and additional emails were exchanged concerning the discovery. (*Id.* ¶¶ 11-15, Exs. "D" – "G".)